

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

MELISSA SERRANO AND ERIC LOZANO,

Plaintiffs,

v.

CITY OF SAN BERNARDINO, A MUNICIPAL
CORPORATION,

Defendant.

Case No.: CIVSB2538092

**[TENTATIVE] ORDER
GRANTING PETITION FOR
ORDER RELIEVING
PETITIONERS FROM CLAIM
PRESENTATION
REQUIREMENTS, FILED BY
PLAINTIFFS/PETITIONERS
MELISSA SERRANO AND ERIC
LOZANO**

I. INTRODUCTION

On December 31, 2025, Plaintiffs Melissa Serrano and Eric Lozano filed a complaint against Defendant City of San Bernardino, alleging causes of action for: (1) wrongful death; (2) survival action for pre-death pain and suffering; (3) dangerous condition of public property; (4) premises liability; and (5) negligence. Plaintiffs allege Teodora Yadira Mendoza was fatally mauled by dogs on July 31, 2025, around Pacific Street and Perris Hill Park Road, and that the

City failed to address dangerous conditions involving uncontrolled dogs in the area. (Compl. ¶¶ 8, 23(b)-(f).)

Plaintiffs later learned that the incident allegedly occurred on County-owned flood control property. On May 14, 2026, they presented applications for leave to present late claims to the County of San Bernardino (County), which the County denied on May 19, 2026. Plaintiffs thereafter filed the present petition for relief from the claim-presentation requirements under Government Code section 946.6, based on excusable neglect. The County opposes and Plaintiffs reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. APPLICABLE LAW

A claim relating to death or personal injury generally must be presented to the public entity within six months after accrual. (Gov. Code, § 911.2, subd. (a).) If that period has expired, the claimant may apply to the public entity for leave to present a late claim. The application must be made within a reasonable time not exceeding one year after accrual. (Gov. Code, § 911.4.)

If the application is denied, the claimant may petition the Superior Court for relief under Government Code section 946.6. The petitioner bears the burden of establishing by a preponderance of the evidence that the late-claim application was presented within a reasonable time and that the failure to timely present the claim resulted from mistake, inadvertence, surprise, or excusable neglect. (Gov. Code, § 946.6, subd. (c)(1); *Department of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1293 (*Department of Water & Power*).) If that showing is made, relief must be granted unless the public entity establishes prejudice. (Gov. Code, § 946.6, subd. (c)(1).)

Excusable neglect is measured by an objective reasonably prudent person standard, and the petitioner must show reasonable diligence in investigating and pursuing the claim. (*N.G. v.*

County of San Diego (2020) 59 Cal.App.5th 63, 73-74; *Department of Water & Power, supra*, 82 Cal.App.4th at p. 1296.) At the same time, section 946.6 is remedial and is construed in favor of relief whenever possible, with doubts resolved in favor of permitting a determination on the merits. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275-76 (*Bettencourt*).) In determining whether an attorney's mistake is excusable, the court considers both the nature of the mistake and counsel's overall diligence in investigating and pursuing the claim. (*Id.* at pp. 276-277.)

III. EXPLANATION OF COURT'S RULING

Petitioners argue that their failure to timely present a claim to the County resulted from excusable neglect because the available information pointed to City or private ownership, and they acted promptly once County ownership was disclosed.

The County argues Petitioners did not exercise reasonable diligence because counsel failed to investigate parcel ownership or present a protective claim before the deadline.

A. Timeliness of the application and petition

The claims accrued no later than July 31, 2025, when Ms. Mendoza passed away. The City disclosed County ownership on May 12, 2026, and Petitioners presented their applications for leave to present late claims to the County two days later, on May 14, 2026. (Schiavone Decl. ¶¶ 30, 33, Exh. J.) The applications were therefore presented within a reasonable time and within one year of accrual. The County denied the applications on May 19, 2026. (*Id.* ¶¶ 34-35, Exhs. K-L.) Petitioners filed the present petition on June 4, 2026, well within six months of the denial. Accordingly, the applications and petition were timely under Government Code sections 911.4 and 946.6.

B. Mistake and excusable neglect

The principal dispute is whether Petitioners exercised reasonable diligence in identifying the County as a potentially responsible public entity.

The County argues counsel had several months before the claim deadline to investigate ownership but did not search assessor records, parcel maps, GIS records, title records, or flood control maps and did not present a protective claim to the County. Petitioners respond that the information available during the claim period pointed elsewhere.

The evidence supports Petitioners' position. Counsel was retained in approximately September 2025 and reviewed the San Bernardino Police Department news release and Ms. Mendoza's death certificate. (Schiavone Decl. ¶¶ 3, 8-9.) The news release identified the incident location only as "Pacific Street/Perris Hill Park Road," and the death certificate identified the place of injury as Perris Hill Park Road; neither identified County-owned property or a flood control parcel. (Id. ¶¶ 8-9, Exhs. A-B.) Counsel also reviewed information concerning Perris Hill Park, which is operated by the City of San Bernardino. (Id. ¶ 10, Exh. C.)

On October 24, 2025, counsel requested the police report, animal control records, and related investigative materials from the San Bernardino Police Department. (Schiavone Decl. ¶ 12, Exh. D.) On November 4, 2025, the Department declined to release further information because the investigation remained open. (Id. ¶ 13, Exh. E.)

Petitioners also timely presented a claim to the City. In response, the City's claims administrator stated that the claim was "misdirected" and recommended that Petitioners pursue "the private property owner, Linda Crume." (Schiavone Decl. ¶¶ 15, 17-19, Exhs. F-G.) The notice did not identify the County or County-owned flood control property.

The precise location was not identified as County property until May 12, 2026, when the City stated in discovery that "the incident occurred on County-owned flood control property"

and produced a map distinguishing the incident site from Perris Hill Park. (Schiavone Decl. ¶¶ 30-31, Exhs. H-I.) Counsel states that, before May 12, 2026, he had no actual knowledge that the incident occurred on County-owned property. (*Id.* ¶ 32.)

The County is right that counsel could have undertaken additional ownership investigation after the City rejected the claim. The availability of additional investigative steps, however, does not alone control whether counsel's mistake was excusable; the Court considers both the nature of the mistake and counsel's overall diligence in investigating and pursuing the claim. (*Bettencourt, supra*, 42 Cal.3d at pp. 276, 279.) This case is distinguishable from *Department of Water & Power*, where the claimant and counsel had possession of, or ready access to, a police report identifying DWP's work as the cause of flooding at the accident scene but conducted no investigation into DWP's potential liability. (*Department of Water & Power, supra*, 82 Cal.App.4th at pp. 1292-96.)

Here, the information available to counsel did not identify the County or County-owned flood control property; counsel sought additional governmental records, timely presented a claim to the City, and received a formal response directing Petitioners to a private property owner. Although reliance on the City's response alone would not establish reasonable diligence, under the circumstances it reinforced the information counsel had obtained through his investigation.

Finally, Petitioners acted promptly once the mistake was discovered. The City disclosed County ownership on May 12, 2026, and Petitioners presented their late claim applications two days later. (Schiavone Decl. ¶¶ 30, 33.) This prompt action further supports the conclusion that the failure to timely present a claim resulted from the ownership mistake rather than inattention.

Petitioners have established by a preponderance of the evidence that their failure to timely present a claim to the County resulted from mistake or excusable neglect. (*Department of Water & Power, supra*, 82 Cal.App.4th at p. 1293.)

C. Prejudice

Because Petitioners have established mistake or excusable neglect, the burden shifts to the County to establish prejudice. The County does not identify any witness who became unavailable, evidence that was lost, change in the condition of the property, or other circumstance substantially impairing its ability to defend the claims. The County has not established prejudice sufficient to defeat relief.¹

IV. CONCLUSION

Petitioners' request for relief from the claim-presentation requirements as to the County of San Bernardino is GRANTED. Petitioners have established that their failure to timely present a claim resulted from mistake or excusable neglect, and the County has failed to establish prejudice.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

¹ The Court need not resolve Petitioners' additional assertions concerning the County's alleged pre-incident knowledge of the dogs or the ultimate merits of the proposed claims. Those issues are not necessary to determine whether relief from the claim presentation requirement should be granted.

Petitioners also request an order permitting them to amend the complaint, authorizing particular causes of action against the County, and determining that certain claims relate back to the original complaint. Government Code section 946.6 authorizes relief from the claim presentation requirement. It does not require the Court, on this petition, to determine whether a proposed amended complaint relates back, whether particular causes of action are otherwise timely, or whether those causes of action are legally sufficient. Those issues may be addressed through the procedures governing amendment of pleadings and any subsequent challenge to the amended pleading.